

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

WRIT PETITION No. 2402 of 2023

In the matter of:

An application under article 102 of the Constitution
of the People's Republic of Bangladesh.

AND

In the matter of:

Bangladesh Jatiya Matsyajibi Samabaya Samity Ltd.
.....Petitioner

-Versus-

The Secretary, Ministry of Local Government, Rural
Development and Co-operatives, Bangladesh
Secretariat, Ramna, Dhaka and others

..... Respondents

Mr. M. Sayed Ahmed, Advocate with
Mr. Md. Nurul Islam Chowdhury Dulal, Advocate
.....For the Petitioner

Mr. Bepul Bagmar, D.A.G.
.... For the respondent No. 1.

Mr. Manzill Murshid, Advocate
.... For the respondent No. 7.

Mr. K.S. Salah Uddin Ahmed, Advocate.
..... For the Respondent No. 6.

Judgment on: 29.05.2024

Present:

**Mr. Justice Md. Khasruzzaman
and
Mr. Justice K M Zahid Sarwar**

Md. Khasruzzaman, J:

In the application under article 102 of the Constitution, on
05.03.2023 the *Rule Nisi* was issued calling upon the respondents to
show cause as to why the order contained in Memo No.
05.42.0000.021.39.027.20-47/1 dated 20.02.2022 (Anexure-K) passed

by the respondent Nos. 3 dismissing the appeal filed by the petitioner under section 10 of the Government and Local Authority Lands and Buildings (Recovery of Possession) Ordinance, 1970 should not be declared to be illegal, without lawful authority and is of no legal effect and as to why the eviction notice contained in Memo No. 05.42.1500.302.20.239.2019-1961 dated 20.12.2020 (Annexure-H) issued by the respondent No. 4 directing the petitioner to vacate the occupation over the land measuring 30 acres having B.S. Khatian No. 1, Plot No. 8651, Mouza-Bakolia, Police Station-Bandar, District-Chattogram as described in the eviction notice in violation of the Chattogram Port Authority Act, 2022 (previously the Chittagong Port Authority Ordinance, 1976) and the S.R.O. No. 21-Ain/2019 dated 21.01.2019 issued by the Ministry of Shipping and published in Bangladesh Gazette Notification dated 24.01.2019 (Annexures-B and C) should not be declared to have been done without any lawful authority and is of no legal effect and/or pass such other or further order or orders as to this Court may seem fit and proper.

Factual matrices of the writ petition are not required to be discussed in detail only the relevant fact will be discussed.

The Deputy Commissioner, Chattogram issued the eviction notice under section 5(1) of the Government and Local Authority Lands and Buildings (Recovery of Possession) Ordinance, 1970 and against the said order, the petitioner filed appeal before the Divisional

Commissioner, Chattogram and after hearing, the appeal was dismissed on 20.02.2022 (Annexure-K). Finding no other equally efficacious remedy, the petitioner filed this writ petition and obtained the above *Rule Nisi*.

M. Sayed Ahmed, the learned Advocate for the petitioner submits that they took lease from the Port Authority and these lands belong to the Port. BRS record of rights was published in the name of the Government but BRS record of rights does not confer the title of the land to any one. The government issued the notice on the basis of wrong conception of law and facts. As such the *Rule Nisi* should be made absolute.

On the other hand, Mr. K.S. Salah Uddin Ahmed, the learned Advocate for the respondent No. 6 submits that the Chattogram Port Authority is the owner of the land as per the Chattogram Port (Amendment) Ordinance, 1960 but the land was wrongly recorded in the name of the Government under B.S. Khatian and as such they filed suit for correction of the record. But the Deputy Commissioner, Chattogram without considering the law and facts issued the impugned evection notice and the same has also not been considered by the Divisional Commissioner, Chattogram. Thus the *Rule Nisi* is liable to be disposed of with a direction to dispose of the suit.

Mr. Bepul Bagmar, the learned Deputy Attorney General submits that the record of rights of the land was finally published in

the name of the government and as such the government rightly issued the eviction notice.

Mr. Manzill Murshid, the learned Advocate for the respondent No. 7 submits that Chattogram Port Authority is not permitted to enter into any contract or agreement for lease of land of the river as per provision of law but with the support of the respondent No. 6, the petitioner and their members illegally made earth filling within the area of Karnafuli river in order to take lease of the area. Though there is a specific judgment for protection of river Karnafuli and the respondent No. 6 is very much aware of the direction, ignoring that they were allowed to fill the area of river karnafuli. As per the provision of Environment Protection Law, no one can change the present position of the water body or river. Moreover, the High Court Division also passed judgment declaring the living entity of all rivers of Bangladesh. So, there is no scope to change the character of river but the respondent No. 6 in violation of law supported the illegal activities of the petitioner. As such river should be protected as like as river.

It is stated that the lands in B.S. Khatian No. 1 with B.S. Plot Nos. 8/966, 3848/4791, 6810/6980, 8651 under Bakolia Mouza, Police Station: Bandar, District: Chattogram were recorded as khas khatian, whereas the same was decided as kornofuli river in Writ

Petition No. 6306 of 2010 i.e. the Karnofuli river is flowing in the said lands.

In the present case, the BRS record was finally prepared in the name of the government under Khas Khatian No. 1. Against the said publication of the record of rights, the Port Authority filed Land Survey Tribunal Suit No. 4847 of 2024 before the Land Survey Tribunal, Chattogram for correction of the record. But in the meantime, notice under section 5 of the Ordinance, 1970 was served upon the petitioner to evict him in respect of the land measuring 30.00 acres under B.S. Khatian No. 1, B.S. Plot No. 8651, Mouza: Bakolia, Police Station: Bandar, District: Chattogram, whereas in Writ Petition No. 6306 of 2010 their lordships held that:

“We find from the survey reports and the river profile that, the encroached area, as per R.S. and B.S. Survey, belongs to the government, as recorded under Khash Khatian No. 1, under several mouzas namely, Bakalia, Suja Katgor, Char Mohara, Mohara, East Potenga, Motherbari, Gosaildanga, Monohorkhali and Firingi Bazar, under P.S. Bandar, District-Chittagong, across which the river runs. Therefore, the government, represented by the Deputy Commissioner (D.C), Chittagong, as well as the concerned Ministry are equally duty bound to preserve and protect the river and its banks, along with other respondents, by stopping and evicting all

unauthorized constructions and encroachments, done by way of earth filling or building any kind of structure or in any other manner whatsoever.

Against the judgment and order dated 16.08.2016 in Writ Petition No. 6306 of 2010, CPLA No. 402 of 2019 was filed by Karnafully Ship Builders Ltd., represented by its Managing Director, Mr. M.A. Rashid against the Human Rights and Peace for Bangladesh (HRPB) represented by the Secretary of the Executive Committee Asaduzzaman Siddiqui, Advocate and others which was dismissed on the point of limitation on 15.04.2019. Moreover, in the case of Nishat Jute Mills Limited represented by Abul Kalam Azad Vs. Human Rights and Peace for Bangladesh (HRPB) and others in Civil Petition for Leave to Appeal No. 3039 of 2019, the Appellate Division observed that:

“The Government must be very cautious about deciding the matter and the Government shall not under any circumstance lease or sale any land within the boundary of river Turag including foreshore areas, or for that matter, any other river of Bangladesh to protect the biodiversity, ecological balance and environment of Bangladesh.”

Chattogram Port Authority claims that they are the owner of the lands as per the Chattogram Port Ordinance, and thereafter the Chattogram Port Act. But the Deputy Commissioner, Chattogram on

the basis of the B.R.S. record of rights issued the eviction notice and as such the Port Authority filed suit for correction of the record. In the present case, Mr. Bepul Bagmar, the learned Deputy Attorney General mainly pointed out that the record of the lands was published in the name of the government and as such the notice issued by the government was justified. It is admitted that the B.R.S. record of rights does not confer the title of the land.

It appears from the judgment and order dated 16.08.2016 passed in Writ Petition No. 6306 of 2010 that Plot No. 8651 under B.S. Khatian No. 1, Mouza: Bakolia was classified as river as per survey report and thus with reference to the provisions of articles 111 and 112 of the constitution, the High Court Division amongst other gave the following direction:

(ii) The Deputy Commissioner, Chittagong, the Director General Department of Environment, the CEO, CCC and the Chairman CDA are hereby directed to evict illegal occupants, as per the survey report based on R.S. survey, in a joint effort to be taken under the action plan of Deputy Commissioner, Chittagong, within the next 90 days to be counted from the date of expiry of the above mentioned notice period.

Against the said judgment Civil Petition for Leave to Appeal No. 402 of 2019 was dismissed on 15.04.2019. Moreover, on

17.02.2020 the Appellate Division in Civil Petition for Leave to Appeal No. 3039 of 2019 directed the government to protect all rivers of the country.

It also appears that both the Deputy Commissioner, Chattogram and the Chattogram Port Authority are claiming title of the land. Since title of the land of Plot No. 8651 under B.S. Khatian No. 1 has become clouded, the notice under section 5 of the Ordinance issued by the Deputy Commissioner, Chattogram is without lawful authority and is of no legal effect.

However, this judgment will not operate as a bar for taking any step as per judgment and order dated 16.08.2016 passed in Writ Petition No. 6306 of 2010.

The concerned Land Survey Tribunal is directed to dispose of Land Survey Tribunal Suit No. 4847 of 2024 as early as possible in accordance with law.

In the result, the *Rule Nisi* is disposed of with the above directions without any order as to costs.

Communicate the order.

K M Zahid Sarwar, J:

I agree.